

BEFORE THE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No RG GB DLKHW

STIPULATION AND ORDER

**IN THE MATTER OF DISCIPLINARY PROCEEDINGS AGAINST THE LICENSE
TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO
OF JOAN LOGAN, RN, LPC, LICENSE NO. 234**

Respondent,

IT IS HEREBY STIPULATED and agreed by and between the Board of Licensed Professional Counselor Examiners ("Board") and Joan Logan, RN, LPC ("respondent"), as follows:

1 The Board has jurisdiction over the person of respondent and the subject matter set forth in this stipulation and order.

2 The State Board of Licensed Professional Counselor Examiners granted respondent a license to practice as a licensed professional counselor in Colorado on July 21, 1990. Respondent was issued license number 234

3 On or about December 15, 1997 the Board received a complaint against respondent alleging practice below generally accepted standards of practice

4 Following an investigation of the complaint the Board determined that reasonable grounds existed to refer this matter to its legal counsel, the Colorado Attorney General, for disciplinary action regarding respondent's license to practice professional counseling in the state of Colorado

5 Respondent understands that she has the right to a hearing with respect to the complaint filed against her. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, she waives her right to a hearing, relieves the Board of its burden of proving a violation of the Colorado Mental Health Statute, gives up her right to present a defense by oral and documentary evidence; and gives up her right to cross-

examine witnesses Respondent understands that she has the right to appeal the Board's final order to the Court of Appeals Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, she waives her right to appeal or otherwise contest the validity of the final Board order entered pursuant to this stipulation

6. Respondent agrees that she freely and voluntarily enters into this agreement including practice monitoring and professional continuing education.

7 The Board, by this stipulation and order, hereby orders that respondent's practice of professional counseling shall be on probation for two years commencing with the execution of this stipulation and order or approval of a Board-approved mental health or nursing professional who monitors respondent's practice of professional counseling ("practice monitor"), whichever occurs later.

8 The conditions of respondent's probation are

a Respondent will strictly observe the prohibitions set forth in C R S §12-43-222(1) and assure that she does not engage in any activities that are prohibited activities or fall below generally accepted standards of practice

b Respondent's practice of professional counseling shall be monitored by a Board-approved practice monitor who monitors respondent's practice of professional counseling and reports in writing to the Board in accordance with this order Respondent is currently licensed as a nurse in Colorado and her nursing license will be subject to probation that is concurrent with the probation under this stipulation and order for her Professional Counseling license. Respondent has an approved practice monitor and practice monitoring agreement for the probation relating to her nursing license The nursing practice monitor shall also serve as the practice monitor under this stipulation and order. The practice monitoring under this stipulation and order shall be conducted in accordance with respondent's practice monitor agreement which is Attachment 1 to this stipulation and order, with a copy of the practice monitoring report sent to the Board Respondent may request early termination of this probation the same as provided in her stipulation and order with the Nursing Board Should respondent discontinue her nursing practice, but continue the practice of Professional Counseling prior to completion of her probation she shall complete the probation with practice monitoring conducted according to paragraph 8c of this stipulation and order

c The practice monitoring for solely Professional Counseling practice shall be conducted as follows

(i) The practice monitor shall monitor all of respondent's cases. The practice monitoring shall consist of individual face-to-face sessions between respondent and her practice monitor that occur for at least one hour or such longer time as the practice monitor deems necessary for every twenty hours of client contact, but at least once each month. During the practice monitoring meetings respondent and her practice monitor must review and discuss each of respondent's active cases at least once each month to allow the practice monitor to determine whether respondent is practicing professional counseling in accordance with generally-accepted standards of practice and with skill and safety for her clients.

(ii) The practice monitor is authorized to examine and shall examine such client records and case files maintained by respondent as the practice monitor or the Board deems appropriate and necessary to determine whether respondent is practicing professional counseling in accordance with generally-accepted standards of practice and with skill and safety for her clients.

(iii) The practice monitor shall report the results of monitoring to the Board in writing and send a copy of each report to the respondent. The practice monitor must submit her/his first report on the fifth day of the month following the first full month of practice monitoring. The practice monitor shall submit subsequent reports on the fifth day of each month thereafter (i.e. on a monthly basis) for the first 3 reports. Following submission of the first 3 reports, unless otherwise directed by the Board, the practice monitor shall submit her/his reports on the fifth day of every third month (i.e. on a quarterly basis).

(iv) After the Board's approval of the practice monitor, respondent and the practice monitor shall enter into a written contract for monitoring. The practice monitor shall provide a copy of that written contract to the Board as part of her/his first report to the Board. The contract must contain a provision stating that the practice monitor has received a copy of this order and of the Board's file; has read these documents, and understands the duties and responsibilities s/he is undertaking as respondent's practice monitor.

(v). If, at any time, the practice monitor is of the opinion that respondent is not practicing professional counseling in accordance with generally accepted standards of practice or has a condition which renders her unable to treat clients with skill and safety or which may endanger the health or safety of persons under her care, the practice monitor shall report her/his opinion and the basis for that opinion to the Board. The practice monitor shall make that report in writing and within 48 hours of forming her/his opinion. The practice monitor shall send a copy of that report to the respondent when he/she sends the report to the Board. Once such a report is submitted respondent shall immediately cease the practice of professional counseling.

(vi) Either respondent or her practice monitor may terminate the monitoring relationship on written notice to the other and to the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. In the event respondent does not have another Board-approved practice monitor prior to the termination, respondent shall cease the practice of professional counseling until she obtains another Board-approved practice monitor. The new practice monitor's responsibilities shall be in accordance with this stipulation and order.

(vii) During the period of probation respondent shall not engage in the practice of professional counseling without an approved practice monitor in place.

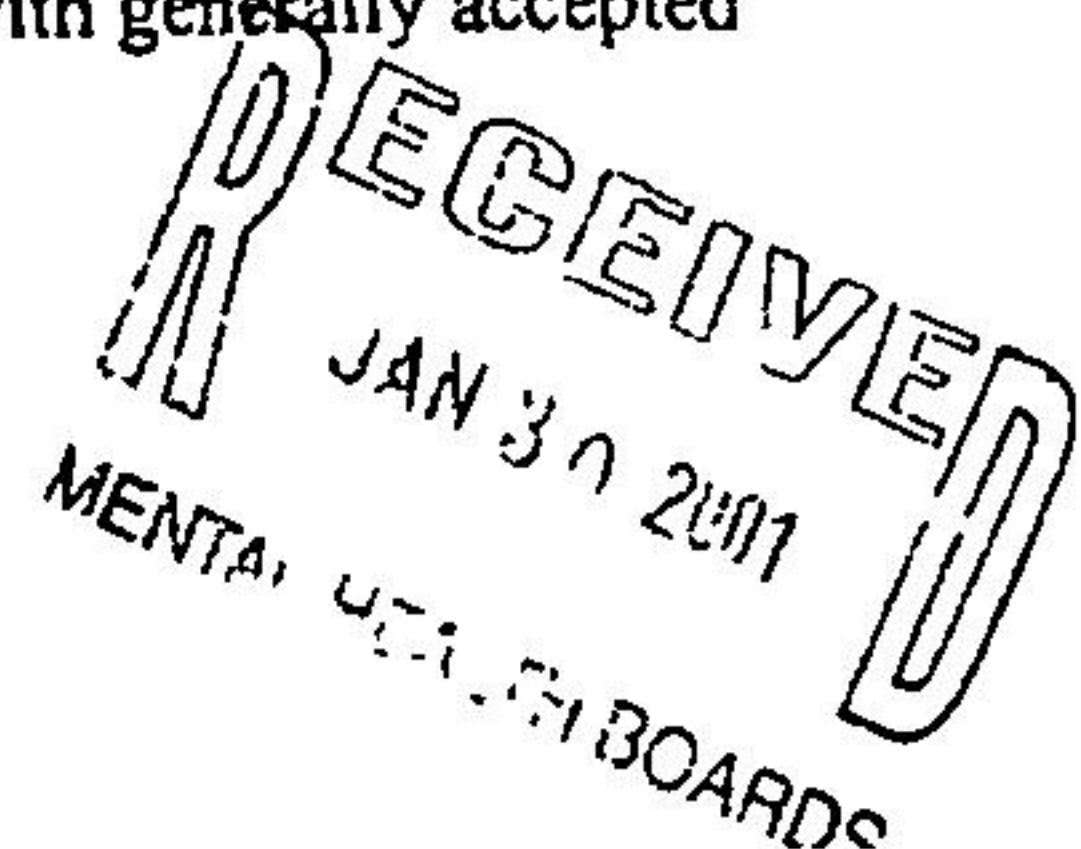
(viii) Respondent shall not supervise or consult with other persons for the purpose of those persons providing mental health services unless such supervision or consultation is monitored by respondent's practice monitor.

d. During the period of probation respondent must complete a minimum of twenty (20) hours of Board-approved professional continuing education during each year of probation. This continuing education shall be professional education designed to educate mental health professionals in the evaluation and treatment of borderline disorders, boundary/ dual relationship issues and other legal/ethical issues related to the practice of professional counseling. Completion of an approved jurisprudence workshop is required as part of this continuing education requirement.

e. Respondent must take reasonable steps to assure that her practice monitor provides required reports to the Board.

f. Respondent, not the Board, shall be responsible for any costs and/or expenses incurred for practice monitoring, professional education, or any other action required in fulfilling the requirements of this order.

g. During the pendency of this order respondent agrees that she will provide permission to and allow her practice monitor to provide medical or psychological information or records to the Board in the event the practice monitor determines that respondent is not able to practice professional counseling in accordance with generally accepted standards of practice or has any condition which renders her unable to treat clients with skill and safety or which may endanger the health or safety of persons under her care. As part of this stipulation and order respondent explicitly waives her right to maintain confidentiality of medical and psychological records and information provided to her practice monitor if the practice monitor determines that she is not able to practice professional counseling in accordance with generally accepted



standards of practice or has any condition which renders her unable to treat clients with skill and safety or which may endanger the health or safety of persons under her care

9. All time periods and obligations regarding practice monitoring stated in this order run only while respondent is engaged in the practice of professional counseling in Colorado under the monitoring of a Board-approved practice monitor. They are tolled and suspended at all other times

10 If respondent discontinues the practice of professional counseling in Colorado, she shall notify the Board, in writing, within thirty (30) days of ceasing practice. This notification shall include the date she ceased practicing and her new address if she has moved

11. In the event respondent subsequently resumes her practice of professional counseling in Colorado she shall provide written notification to the Board prior to resumption of her practice of professional counseling in Colorado. Such notification shall include her address and the date on which she intends to resume practice

12 As used in this stipulation and order, the terms "professional counseling", "practice of professional counseling", "professional counseling practice", and "engaged in the practice of professional counseling" shall have the same meaning and scope as the term "professional counseling" as defined in C R S §12-43-601

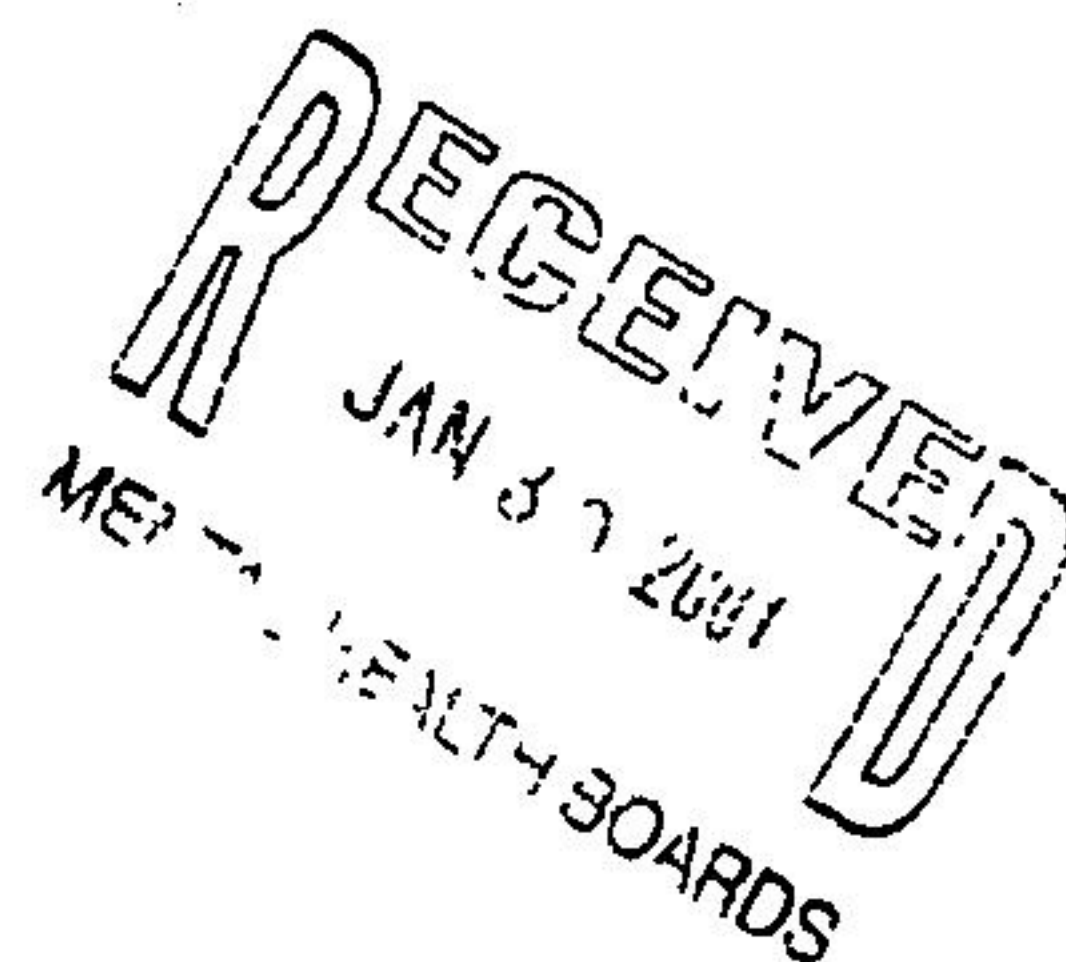
13 No agreement, understanding, representation, or interpretation not contained in this order may be used to vary or to contradict its terms

14 Each party shall bear its own costs, shall pay its own witness fees, and shall pay its own attorney fees

15 Each provision of this order is separate. In the event of litigation involving compliance with the terms of this order, the issues will be restricted to those raised by the interested parties, the resolution of those issues will affect only the pertinent parts of the order, and the parties will be obligated by the judicially-construed parts of the order as if they were part of the original order

16 This stipulation and order shall take effect on acceptance and signature by the Board.

17 This stipulation and order is a public record




 JOAN LOGAN, RN, LPC
 Respondent

DATED: 12/1/00

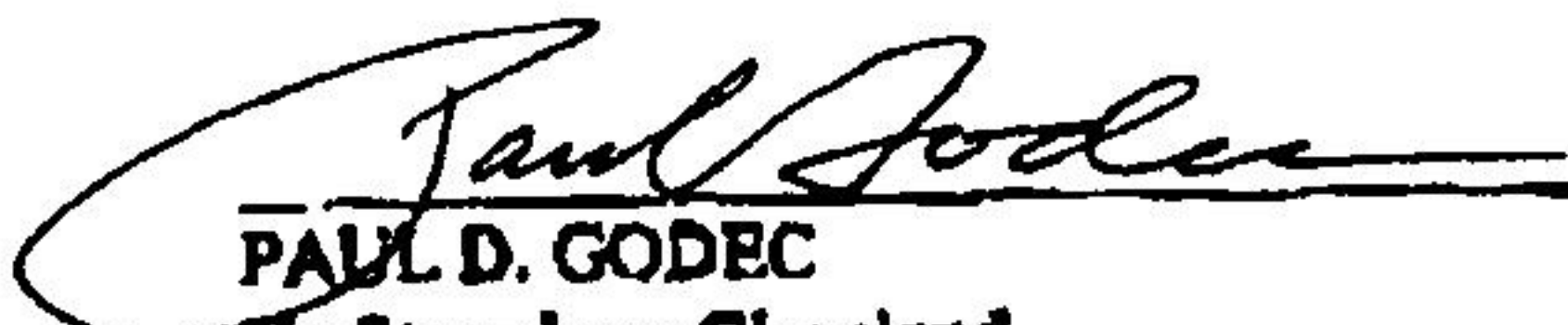
ACCEPTED, SIGNED, AND ORDERED this 10th day of Jan, 2000. 2001

STATE BOARD OF LICENSED
 PROFESSIONAL COUNSELOR EXAMINERS


 SUSAN L. GARCIA, M.A., LPC
 Board Chair

APPROVED AS TO FORM

FOR THE RESPONDENT:


 PAUL D. GODEC
 Yu Stromberg Cleveland

Attorneys for Respondent
 Joan Logan, RN, LPC

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 Telephone: 303/388-9311

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 Business and Licensing Section

Attorneys for the State Board of Licensed
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 Denver, Colorado 80203
 Telephone: 303/866-5283
 AG Alpha No. RG GB DLKHW
 AG File No. RLJC0216

PRACTICE MONITOR AGREEMENT

CAROL BARTON-GOREC

Pursuant to a meeting on September 18, 2000, Carol Gordon Barton ("Barton") has agreed to provide practice monitoring services for Joan Logan ("Logan") consistent with the Stipulation and Order ("Stipulation") between Logan and the Colorado State Board of Nursing and the Colorado State Board of Licensed Professional Counselors ("Boards") and under the following terms:

1. Barton and Logan will meet face-to-face for at least two hours per month.

2. During meetings specified in § 1, Barton will review all of Logan's clients at least quarterly by reviewing ten clients per month of Logan's total caseload of 25 to 30 clients. Barton will select which cases she wishes to review each month. Barton shall have full access to all contents of the client files. Logan shall obtain any necessary permission from the client or nursing home to enable Barton to review client records and information. Logan will provide the necessary case documentation to Barton for the selected clients.

(a) Barton's review will include copies of the notes that are present in each client's chart such as: Progress Notes, Psychological Evaluation, and Treatment Plans. Barton believes that a review of these chart records should provide all the necessary information needed to assess Logan's nursing interventions and procedures because Logan's notes are quite extensive.

(i) Progress notes shall include: Diagnosis (DSM IV Axis), Global Assessment of Functioning, Mental Status, Symptoms, Presentation, Themes, Interventions, Responses, Impression, Concerns, Treatment Plan Goals and Strategies and Plans

(ii) Psychological Evaluations shall include: Presentation, History, Symptoms, Mental Status, Medical, Medications, Diagnosis, and Recommendations.

(iii) Treatment plans shall be done quarterly with members of the interdisciplinary team for Logan's nursing home clients. The treatment plans shall include a face sheet with comments on the progress towards goals, and what goals the staff would like to see added. The treatment plans shall be signed by the members of the interdisciplinary team. The treatment plan shall include for each client a statement of the Problem and Goals, Severity Level, Approach, Measurement and Time Frame, and any Psychoactive Medications, Treatment Modalities, Reasons for Choosing the Modality and overall Recommendations.

(b) If Barton should require additional information to satisfy her practice monitoring responsibilities to the Boards, Logan shall provide the requested information to Barton at the next monthly meeting to Barton's satisfaction.

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EXHIBIT A

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3. Barton will provide the Board of Nursing with monthly reports for the first three months and quarterly reports thereafter. The first report is due 30 days after the Board has entered into a Stipulation and Order with Logan

4. Each report that Barton submits to the Board shall contain the following:

- 1) A description of the review conducted;
- 2) A written narrative discussing Logan's care and treatment of clients;
- 3) Whether, in the practice monitor's opinion, Logan is practicing counseling or nursing in accordance with generally accepted standards of practice in Colorado.
- 4) Whether, in the practice monitor's opinion, Logan's practice is consistent with the health and safety of the patients.

5. Barton agrees to preserve the confidentiality of information regarding each of Logan's clients. Barton's monitoring of Logan's practice will consist primarily of a review of the client records. If Barton believes she will need to contact nursing home employees to satisfy her duties under this agreement and under the Stipulation, Barton agrees to cooperate with Logan in contacting those employees.

6. In addition to monitoring Logan's caseload, Barton will review with Logan various nursing principles, procedures and practices, including but not limited to the following: the referral process, therapy contract, psychiatric evaluation, medication/psychiatric evaluation, medication review, and treatment plan review. Likewise, Barton will assist Logan in developing a nursing procedures for Logan's interfacing and linking with the primary care physicians, nursing staff, social workers, and administrators in nursing homes, and for Logan's interacting with persons having power of attorney or legal guardianship for Logan's clients, and with family members for Logan's clients.

7. In any instance where Barton believes that Logan is not practicing in accordance with generally accepted standards of practice in Colorado, or that the Logan's practice is inconsistent with the health and safety of the patients, Barton shall immediately report such information to the Board of Nursing or the Board of Licensed Professional Counselors in writing with an explanation of the reasons for such a conclusion.

8. Logan agrees to pay Barton at the rate of \$____ per hour for her services under this agreement.

9. This agreement is specific to Logan's association with Senior Counseling Group. If Logan's association with Senior Counseling Group terminates, this Agreement shall also terminate.

Johan Logan C.N.S., L.P.C.

Carol Barton-Godec 12/14/20
 Carol Godec Barton
 CAROL BARTON-GODEC RN, MS, CNS

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